

Family Law – II (Hindu Law)

■ Sources of Hindu Law and Schools of Hindu Law

◆ I. Introduction

Hindu Law is one of the most ancient and developed systems of personal law in the world. It governs the legal issues of Hindus relating to marriage, divorce, adoption, inheritance, succession, and maintenance. Traditionally derived from religious texts and social customs, Hindu law has also evolved through judicial decisions and modern legislation.

The **Sources of Hindu Law** are broadly categorized into two types:

1. **Ancient Sources**
2. **Modern Sources**

Additionally, the **Schools of Hindu Law** represent the interpretative variations developed in different regions over time.

◆ II. Sources of Hindu Law

► A. Ancient Sources

Ancient sources of Hindu law are derived from sacred scriptures and traditional practices.

1. Shruti (Meaning: “That which is heard”)

- These are the **primary and most authoritative** source of Hindu Law.
- Comprise the **Vedas** and the **Upanishads**, believed to be divine revelations.
- Four Vedas:
 - Rigveda
 - Yajurveda
 - Samaveda
 - Atharvaveda
- Shruti lays down principles of **Dharma** (moral and legal duties).

2. Smriti (Meaning: “That which is remembered”)

- Texts written by sages based on Shruti.
- They elaborate and interpret Vedic principles.
- Divided into:
 - **Dharma Sutras** – Prose texts dealing with rules of conduct.
 - **Dharma Shastras** – Verses containing legal and social principles.
- Famous Smritis:
 - **Manusmriti**
 - **Yajnavalkya Smriti**
 - **Narada Smriti**
 - **Parashara Smriti**

3. Commentaries and Digests (Nibandhas)

- Scholarly interpretations of Smritis.

- Two types:
 - **Commentaries (Tika)** – Explain a single Smriti.
 - **Digests (Nibandhas)** – Combine multiple Smritis and reconcile differences.
- Important Commentaries:
 - **Mitakshara** by Vijnaneshwara
 - **Dayabhaga** by Jimutavahana
- Important Digests:
 - **Smriti Chandrika, Viramitrodaya, Vyavahara Mayukha**

4. Custom (Aachara)

- Custom is accepted as law if:
 - It is **ancient, reasonable**, and **not immoral**.
- Recognized in *Gokal Chand v. Parvin Kumari (1952)*.
- Types of Custom:
 - **Family Custom** – within a family.
 - **Local Custom** – in a specific region.
 - **Caste/Tribal Custom** – within a community.

► B. Modern Sources

1. Equity, Justice and Good Conscience

- Where no rule exists in traditional law, courts apply **reason and fairness**.
- Considered as a last resort.
- Applied in *Rinchnu Begum v. Nawab of Carnatic (1885)*.

2. Legislation

- Statutory law is now the **primary source** of Hindu Law.
- Important Acts:
 - **Hindu Marriage Act, 1955**
 - **Hindu Succession Act, 1956**
 - **Hindu Adoption and Maintenance Act, 1956**
 - **Hindu Minority and Guardianship Act, 1956**
- These laws codified and clarified the traditional Hindu laws.

3. Judicial Decisions (Precedents)

- Under **Article 141** of the Constitution, decisions of the Supreme Court are binding.
- Courts interpret and develop Hindu Law by filling gaps in legislation.
- Example:

Shastri Yagnapurushdasji v. Muldas Bhudardas Vaishya (1966) – SC recognized broad inclusiveness of Hinduism.

◆ III. Schools of Hindu Law

Different schools emerged due to varying interpretations of Smritis by scholars in different regions.

► A. Mitakshara School

- Based on the commentary **Mitakshara** by **Vijnaneshwara**.
- Prevails in **most parts of India** (North, West, and South India).

* Key Features:

- Applies to all Hindus except in Bengal and Assam.
- **Birthright in property** – A son acquires interest in ancestral property by birth.
- **Doctrine of survivorship** applies.
- Women had **limited property rights** (prior to the Hindu Succession Act, 2005).
- Recognizes **coparcenary** (joint ownership by male members).

* Sub-Schools:

1. **Banaras School** – Uttar Pradesh, Madhya Pradesh, Bihar
2. **Mithila School** – Bihar, parts of Nepal
3. **Maharashtra School** – Maharashtra, Gujarat
4. **Dravida School** – Tamil Nadu, Andhra Pradesh
5. **Punjab School** – Punjab, parts of Haryana

► B. Dayabhaga School

- Based on the treatise **Dayabhaga** by **Jimutavahana**.
- Followed in **West Bengal and Assam**.

* Key Features:

- No birthright in ancestral property.
- Property is inherited **after the death** of the father.
- **Women can inherit** as full owners (even before 2005 amendment).
- Does **not recognize coparcenary** before partition.

◆ IV. Key Case Laws

Case Name	Importance
Gokal Chand v. Parvin Kumari (1952)	Defined conditions for recognition of custom.
Shastri Yagnapurushdasji v. Muldas Bhudardas Vaishya (1966)	SC explained who is a Hindu; clarified inclusiveness of Hinduism.
Rinchnu Begum v. Nawab of Carnatic (1885)	Applied principles of equity, justice, and good conscience.
V. Tulasamma v. Sesha Reddy (1977)	Gave women greater rights in Hindu joint family property.

◆ V. Conclusion

The evolution of Hindu Law has been a dynamic process – from divine scriptures to contemporary legislation. The **ancient sources** form the spiritual and philosophical base, while the **modern sources**, especially legislation and judicial decisions, have brought clarity and uniformity. The **Mitakshara and Dayabhaga** schools represent how geographical, cultural, and scholarly differences shaped Hindu Law across regions.

Understanding the sources and schools of Hindu Law is essential as they provide the foundation for all Hindu personal laws being applied in India today.

■ Law of Marriage under the Hindu Marriage Act, 1955

◆ I. Introduction

Marriage under Hindu Law is considered not merely a contract but a **sacrament (sanskara)** – a sacred, lifelong union of a man and a woman for the performance of religious duties. However, with the **Hindu Marriage Act, 1955**, the concept of marriage has undergone transformation, giving it a more **legal and civil character**, while retaining its religious essence.

The **Hindu Marriage Act, 1955** codifies and governs marriage among Hindus and lays down conditions for a valid marriage, registration, rights and duties of spouses, and provisions for separation and divorce.

◆ II. Applicability of the Act (Section 2)

The Act applies to:

- Any person who is a **Hindu by religion**, including:
 - **Buddhists**
 - **Jains**
 - **Sikhs**
- And to anyone who is **not a Muslim, Christian, Parsi or Jew** by religion, unless proven otherwise.
- Also applies to **Hindus domiciled in India**, even if married outside India.

◆ III. Essentials of a Valid Hindu Marriage (Section 5)

According to Section 5 of the Act, a Hindu marriage is valid only if the following conditions are fulfilled:

1. Monogamy

- Neither party should have a **spouse living** at the time of marriage.

✦ *Case: Yamunabai Anantrao Adhav v. Anantrao Shivram Adhav (1988)*

Held that a second marriage while the first is subsisting is void.

2. Mental Capacity

- Both parties must be:
 - Capable of giving **free and valid consent**,
 - Of **sound mind**, and
 - Not suffering from mental disorder making them unfit for marriage and procreation.

3. Minimum Age Requirement

- The groom must be **21 years**, and the bride **18 years** at the time of marriage.

✦ *Note:* Violation does not make marriage void, but punishable under the Prohibition of Child Marriage Act, 2006.

4. Prohibited Degrees of Relationship

- Parties must not be within **prohibited degrees** unless their **custom or usage permits** such marriage.

5. Sapinda Relationship

- Parties must not be **sapindas** of each other unless permitted by custom.

✦ *Meaning of Sapinda:* Persons who share a common line of descent up to:

- 3 generations through the mother, and
- 5 generations through the father.

◆ IV. Ceremonies of Hindu Marriage (Section 7)

- A Hindu marriage is solemnized according to the **customary rites and ceremonies** of either party.
- One such essential ceremony is **Saptapadi** (seven steps before the sacred fire).
 - The marriage becomes **complete and binding when the seventh step is taken**.

🔴 *Case: Kanwal Ram v. Himachal Pradesh (1966)*

Held that proof of essential ceremonies is necessary for a valid marriage.

◆ V. Types of Marriages under Hindu Law (Traditionally)

Although not explicitly mentioned in the Act, Hindu scriptures recognize 8 types of marriages:

1. **Brahma** – Giving daughter to a learned man.
2. **Daiva** – Giving daughter to a priest during yajna.
3. **Arsha** – Marriage after receiving symbolic gifts.
4. **Prajapatya** – Based on mutual consent.
5. **Asura** – Marriage through payment to the bride's family (discouraged).
6. **Gandharva** – Love marriage (based on mutual attraction).
7. **Rakshasa** – Marriage by abduction.
8. **Paisacha** – Marriage with a woman while she is unconscious (condemned).

Only the first four are considered righteous and legal today.

◆ VI. Registration of Hindu Marriage (Section 8)

- The Act **permits** but does not mandate **registration** of marriages.
- Registration is helpful as proof in disputes.
- Various states (like Maharashtra, Delhi) have their own **marriage registration rules** under this section.

◆ VII. Nullity of Marriage and Divorce

The Act also deals with:

- **Void Marriages** (Section 11):
If conditions under Section 5 (like bigamy or prohibited relationship) are violated.
- **Voidable Marriages** (Section 12):
Due to fraud, coercion, or impotency.
- **Divorce** (Section 13):
Lays down grounds like adultery, cruelty, desertion, mental disorder, etc.

⚖️ *Important Case: Sarla Mudgal v. Union of India (1995)*

Held that a Hindu husband cannot convert to Islam to solemnize second marriage without dissolving the first marriage under the Hindu Marriage Act.

◆ VIII. Landmark Case Laws

Case	Principle Established
Sarla Mudgal v. UOI (1995)	Second marriage after conversion is void; punishable under bigamy laws.

Case	Principle Established
Yamunabai Anantrao v. Anantrao (1988)	Second wife has no legal status if marriage violates monogamy.
Kanwal Ram v. State of HP (1966)	Solemnization through customary rites is essential.
Satya v. Teja Singh (1975)	Marriage performed under Hindu rites cannot be dissolved by foreign court not recognizing Hindu law.

◆ IX. Conclusion

The **Hindu Marriage Act, 1955** marks a shift from religious to legal regulation of marriage among Hindus. It upholds traditional values while introducing **equality, consent, monogamy, and legal remedies** for marital issues. A valid Hindu marriage today must conform to both **ceremonial requirements** and **statutory conditions** under the Act.

Matrimonial Remedies with Special Reference to Dissolution of Marriage under the Hindu Marriage Act, 1955

Introduction

The Hindu Marriage Act, 1955 not only lays down conditions for a valid marriage but also provides legal remedies to deal with matrimonial disputes. One of the most significant aspects of the Act is the provision for **matrimonial relief**, particularly the **dissolution of marriage** through **divorce**. These remedies ensure protection of individual rights, gender equality, and access to justice.

Matrimonial Remedies under the Act

The Act provides the following matrimonial remedies:

1. **Restitution of Conjugal Rights** – Section 9
2. **Judicial Separation** – Section 10
3. **Divorce** – Section 13
4. **Divorce by Mutual Consent** – Section 13-B
5. **Annulment of Void and Voidable Marriages** – Sections 11 and 12

The most important among them is **divorce**, which leads to complete dissolution of the marital relationship.

Dissolution of Marriage (Divorce) – Section 13

Grounds for Divorce Available to Both Husband and Wife

Under Section 13(1), either spouse may file a petition for divorce on one or more of the following grounds:

1. **Adultery** – Voluntary sexual intercourse with another person after marriage.
Earlier treated as a criminal offence under IPC Section 497 (now decriminalized in Joseph Shine v. Union of India, 2018).
2. **Cruelty** – Mental or physical cruelty causing reasonable apprehension in the mind of the spouse.
Case: Naveen Kohli v. Neelu Kohli (2006) – Defined cruelty in broad terms.
3. **Desertion** – Continuous abandonment without reasonable cause for at least **2 years**.
4. **Conversion** – If a spouse converts to another religion.
5. **Mental Disorder** – Spouse is incurably of unsound mind or suffers from a mental disorder making cohabitation unreasonable.
6. **Leprosy** – Suffering from a virulent and incurable form (now removed by the Personal Laws (Amendment) Act, 2019).
7. **Venereal Disease** – In a communicable form.

8. **Renunciation** – If a spouse renounces the world and enters into a religious order.
9. **Presumption of Death** – Not heard of as being alive for **7 years or more**.

Additional Grounds Available Only to the Wife (Section 13(2))

A wife can also file for divorce on the following special grounds:

1. Husband has married again or has another living wife (bigamy).
2. Husband is guilty of rape, sodomy, or bestiality.
3. Decree of maintenance has been passed under Section 18 of Hindu Adoption and Maintenance Act or Section 125 CrPC, and no cohabitation for one year.
4. Marriage was solemnized before she attained the age of 15, and she repudiated it before attaining 18.

Divorce by Mutual Consent – Section 13-B

Introduced by the Marriage Laws (Amendment) Act, 1976.

Requirements:

1. Both parties agree that the marriage has **broken down**.
2. They have **lived separately for at least 1 year**.
3. Joint petition is filed for divorce.
4. After **cooling-off period** (6 months, which may be waived – *Amardeep Singh v. Harveen Kaur, 2017*), the court may grant a decree of divorce.

Void and Voidable Marriages

Section 11 – Void Marriages

Automatically null and void if:

- Bigamy exists,
- Parties are within prohibited degrees,
- Parties are sapindas of each other.

Section 12 – Voidable Marriages

Can be annulled by the court if:

- Consent obtained by fraud or force,
- Impotency of either party,
- Mental incapacity,
- Bride was pregnant by someone else at the time of marriage.

Judicial Separation – Section 10

This is a legal separation without dissolving the marriage. After judicial separation, spouses are **not bound to cohabit**. It may later be converted into a divorce if there is no resumption of cohabitation for one year.

Restitution of Conjugal Rights – Section 9

If either spouse **withdraws from the society of the other** without reasonable cause, the aggrieved party may seek a court decree to restore marital relations.

Important Case Laws

1. **Naveen Kohli v. Neelu Kohli (2006)** – Recognized irretrievable breakdown of marriage as cruelty.
2. **Samar Ghosh v. Jaya Ghosh (2007)** – Laid down broad guidelines for determining mental cruelty.

3. **Amardeep Singh v. Harveen Kaur (2017)** – Held that the 6-month waiting period in mutual consent divorce is not mandatory.
4. **Joseph Shine v. Union of India (2018)** – Decriminalized adultery but retained as a ground for divorce.

Conclusion

The Hindu Marriage Act, 1955 provides a comprehensive legal framework for the **dissolution of marriage**, balancing traditional Hindu values with modern legal needs. It empowers both men and women with the right to seek remedies in case of marital breakdown, promoting fairness, dignity, and autonomy in matrimonial relationships.

■ Maintenance under the Hindu Adoptions & Maintenance Act, 1956 and the Hindu Marriage Act, 1955

◆ I. Introduction

Maintenance refers to the **financial support** provided to a dependent person (such as wife, child, aged parents, etc.) who is unable to maintain themselves. Hindu Law recognizes maintenance as a **moral, legal, and social duty**, particularly of a husband toward his wife and children, and of children toward their aged parents.

Maintenance is dealt with under **two key statutes**:

1. **Hindu Adoptions and Maintenance Act, 1956 (HAMA)**
2. **Hindu Marriage Act, 1955 (HMA)**

◆ II. Maintenance under the Hindu Adoptions and Maintenance Act, 1956

This Act codifies the traditional Hindu law on **adoption and maintenance**.

Chapter III (Sections 18–28) deals exclusively with **maintenance**.

◆ Section 3(b): Definition of Maintenance

Includes:

- **Provision for food, clothing, residence, education and medical attendance and treatment.**
- In the case of an unmarried daughter, also includes **reasonable expenses of and incident to her marriage**.

◆ Section 18: Maintenance of Wife

A Hindu wife is entitled to be maintained by her husband during her lifetime.

Conditions:

- Must be **legally wedded** Hindu wife.
- Must be **living separately** with **just and reasonable cause** (if not living with the husband).

Grounds When Wife Can Claim Separate Maintenance:

- Husband is guilty of **desertion, cruelty, conversion to another religion, another wife, concubine**, etc.

🔴 *Case: **Bipinchandra v. Prabhavati (1957)** – Defined desertion as intentional abandonment.*

No Maintenance If:

- Wife is **unchaste**, or
- Converts to **another religion**.

◆ Section 19: Maintenance of Widowed Daughter-in-law

- Entitled to be maintained by father-in-law **if she cannot maintain herself** and has no other source or relative legally bound to maintain her.
- Liability of father-in-law continues **only if he has means**.

◆ Section 20: Maintenance of Children and Aged Parents

- A Hindu is bound to maintain:
 - **His/her legitimate or illegitimate children (minor or unable to earn).**
 - **Aged or infirm parents** who are unable to maintain themselves.

✦ *Case: **Kirtikant D. Vadodaria v. State of Gujarat (1996)** – Father not liable to maintain child born out of an adulterous relationship.*

◆ **Section 21 & 22: Maintenance of Dependents**

- Provides maintenance to certain **dependents** of a deceased Hindu out of his estate.
- Includes parents, stepmother, unmarried daughter, widowed daughter, minor grandchildren, etc.

◆ **Section 23: Amount of Maintenance**

The court considers the following factors:

- Position and status of parties
- Reasonable wants
- Value of claimant's property and income
- Number of dependents
- Capacity of person liable to pay

◆ **III. Maintenance under the Hindu Marriage Act, 1955**

The HMA, 1955 provides **temporary and permanent maintenance** in matrimonial proceedings.

◆ **Section 24: Maintenance *pendente lite* and Expenses of Proceedings**

- Either spouse (husband or wife) who **has no sufficient income** can claim:
 - **Monthly maintenance**
 - **Expenses of litigation**
- Court must ensure that **proceedings are not delayed due to financial hardship**.

✦ *Case: **Savitri v. Govind Singh Rawat (1986)** – Supreme Court held that interim maintenance must be granted on an urgent basis.*

◆ **Section 25: Permanent Alimony and Maintenance**

- Either spouse can be awarded **lump sum or monthly/periodical maintenance** at the time of:
 - Passing of decree (divorce, annulment, etc.)
 - Or **after the decree**, upon application.

Factors Considered:

- Income and property of both parties
- Conduct of the parties
- Other circumstances of the case

Modification:

- Court can **vary, modify or rescind** the order upon:
 - Change in circumstances,
 - Remarriage of wife or husband,

- Unchastity or illicit sexual relation of the wife,
- If husband has sexual intercourse with another woman.

◆ IV. Distinction between Maintenance under HAMA and HMA

Basis	HAMA (1956)	HMA (1955)
Scope	Covers wife, children, aged parents, dependents	Only for husband and wife
Nature	Independent of matrimonial proceedings	Arises from matrimonial proceedings
Status of Wife	Wife can claim maintenance even if marriage subsists	Maintenance is linked with petition under HMA
Application	Wider in scope – includes dependents and widows	Narrow – focuses on spouses only

◆ V. Important Case Laws

1. **Savitri v. Govind Singh Rawat (1986)**
– Right to interim maintenance under Section 24 is part of access to justice.
2. **Shail Kumari Devi v. Krishan Bhagwan Pathak (2008)**
– Maintenance is not a matter of charity; it is a legal right.
3. **Bipinchandra Jaisingbhai v. Prabhavati (1957)**
– Explained legal grounds for desertion and thus wife's right to maintenance.
4. **Kirtikant Vadodaria v. State of Gujarat (1996)**
– Illegitimate children of an adulterous relationship not entitled under HAMA.

◆ VI. Conclusion

Maintenance is an essential social and legal responsibility under Hindu Law. The **Hindu Adoptions and Maintenance Act, 1956** deals with general maintenance obligations, while the **Hindu Marriage Act, 1955** provides maintenance relief during and after matrimonial proceedings. The Indian judiciary has consistently upheld the right to maintenance as a measure to ensure justice, dignity, and basic livelihood, especially for women and children.

■ Law of Adoption under the Hindu Adoptions and Maintenance Act, 1956 with Special Reference to the Doctrine of Relation Back

◆ I. Introduction

Adoption under Hindu Law is considered a **sacramental act** and a **legal process** whereby a person takes another's child as their own. It creates a **legal parent-child relationship** between persons not biologically related.

The law relating to adoption among Hindus is codified under the **Hindu Adoptions and Maintenance Act, 1956 (HAMA)**. It provides **uniform and comprehensive rules** regarding the capacity, procedure, and legal consequences of adoption.

◆ II. Applicability of the Act (Section 2)

The Act applies to:

- Any person who is a **Hindu by religion**, including:
 - **Buddhists, Jains, and Sikhs**
- Any child who is Hindu, Buddhist, Jain, or Sikh.
- Applies also to those who are not Muslim, Christian, Parsi or Jew, unless proven otherwise.

◆ III. Essential Conditions of a Valid Adoption (Section 6)

No adoption is valid unless:

1. The person adopting has the **capacity and the right** to adopt.
2. The person giving in adoption has the **capacity** to do so.
3. The person being adopted is **capable** of being adopted.
4. The adoption is made in **compliance with the Act's provisions**.

◆ IV. Who Can Adopt? (Section 7 and 8)

► A. Male Hindu (Section 7)

He can adopt if:

- He is of **sound mind**,
- **Major** (18 years or above),
- Has a **living wife**, and her **consent is necessary**, unless:
 - She is of unsound mind,
 - Has renounced the world,
 - Ceased to be Hindu.

► B. Female Hindu (Section 8)

She can adopt if:

- She is of **sound mind** and **major**,
- Unmarried, or
- Divorced, widowed, or husband has renounced the world / ceased to be Hindu / declared of unsound mind.

✦ *Case: **Malti Roy v. Sudhindranath Majumdar (1991)** – Consent of wife is mandatory unless exceptions under Section 7 apply.*

◆ V. Who Can Be Adopted? (Section 10)

A person can be adopted if:

1. **Hindu** by religion.
2. **Not already adopted**.
3. **Unmarried** (unless custom allows married person's adoption).
4. Under the age of **15 years**, unless there is a **custom** to the contrary.

◆ VI. Other Conditions for Valid Adoption (Section 11)

1. If a **son is adopted**, there must not already be a living **biological or adopted son** in the adoptive family.
2. Same rule applies for adopting a **daughter**.
3. If adopting a **daughter**, the adoptive father must not have a wife, or must take her consent.
4. Adopted child must be **actually given and taken** in adoption with **intent to transfer** the child.

✦ *Case: **Ragunath v. Union of India (1975)** – Actual giving and taking is a mandatory ritual in adoption.*

◆ VII. Effects of Adoption (Section 12)

Once adopted, the child is **deemed to be the child of the adoptive parents** for all purposes:

- All ties with the biological family are **severed**.

- Gains all **rights of inheritance** in the adoptive family.
- Cannot marry any person who would be prohibited if he/she were the natural-born child of adoptive parents.

◆ VIII. Doctrine of Relation Back

The **Doctrine of Relation Back** means that the adopted child is **deemed to have been born** in the adoptive family **from the date of death of the adoptive father** (in case of posthumous adoption), or **from the date of adoption** in general circumstances.

✦ Purpose:

- To ensure the **continuity of lineage and inheritance rights**, especially for **posthumous adoption** (adoption after death of the adoptive father by his widow).

► Judicial Interpretation:

✦ V.T.S. Chandrashekhara Mudaliar v. Kulandaivelu Mudaliar (1963)

SC held: The adopted son gets **inheritance rights** as if he were born in the adoptive family from the time of adoptive father's death.

✦ Krishna Pal v. Rajendra Pal (1982)

Held: The doctrine applies **only for inheritance**, not to undo transactions made before the adoption.

✦ Shrinivas Krishnarao Kango v. Narayan Devji Kango (1954)

Supreme Court ruled that the doctrine of relation back is limited to **inheritance rights**, and not for challenging alienations made before adoption.

► Conditions for Application:

1. **Valid adoption** must have taken place.
2. Adoptive father must be **deceased**, and adoption done by **widow**.
3. Property must be **inheritable** at the time of death.
4. No third-party rights (like sale or transfer) should have vested prior to adoption.

◆ IX. Rights of Adoptive Parents and Child

- The adoptive child is entitled to **maintenance and inheritance** in the adoptive family.
- Adoptive parents are responsible for the child's **care, education, and welfare**.
- Adoption is **irrevocable** once validly made.

◆ X. Important Case Laws

1. **Malti Roy v. Sudhindranath Majumdar (1991)**
– Wife's consent is mandatory unless she falls within exceptions under Section 7.
2. **Raghunath v. Union of India (1975)**
– The ceremony of **giving and taking** is essential for a valid adoption.
3. **V.T.S. Chandrashekhara Mudaliar v. Kulandaivelu Mudaliar (1963)**
– Doctrine of relation back gives the adopted son rights as if born into the family.
4. **Krishna Pal v. Rajendra Pal (1982)**
– Relation back doctrine cannot nullify alienation of property before adoption.

◆ XI. Conclusion

The Hindu Adoptions and Maintenance Act, 1956 has standardized and modernized the law of adoption in India. It ensures equal rights for adopted children and recognizes women's independent right to adopt. The **Doctrine of Relation Back**, although rooted in ancient law, is still relevant for securing the **inheritance rights** of adopted

children, especially in cases of posthumous adoptions. However, courts have also restricted its misuse to protect vested interests and third-party rights.

■ Law of Guardianship under the Hindu Minority and Guardianship Act, 1956

◆ I. Introduction

The concept of **guardianship** arises when a child (minor) is **incapable of taking care of himself or his property** due to age or understanding. Under Hindu Law, guardianship refers to the **legal authority** given to a person to take care of a **minor person or his property**.

The **Hindu Minority and Guardianship Act, 1956** supplements the Guardians and Wards Act, 1890 and provides specific provisions for Hindus.

◆ II. Applicability of the Act (Section 2)

This Act applies to:

- Hindus, including **Buddhists, Jains, and Sikhs**,
- Any person not a Muslim, Christian, Parsi, or Jew,
- Applies unless proved that such person is not governed by Hindu Law.

◆ III. Definitions

◆ Minor (Section 4(a)):

A person who has not completed the age of **18 years**.

◆ Guardian (Section 4(b)):

A person who is responsible for the **care of the person of a minor** or his **property or both**.

◆ IV. Types of Guardians under Hindu Law

1. **Natural Guardian**
2. **Testamentary Guardian**
3. **Guardian Appointed by Court (Statutory Guardian)**
4. **De facto Guardian** (Not recognized by Act but exists in practice)

◆ V. Natural Guardians (Section 6)

Natural guardian is the primary guardian under law.

For a Boy or Unmarried Girl:

- **Father** is the natural guardian,
- **Mother** is guardian *after father's death*, or when father is disqualified.

For a Married Girl:

- Her **husband** is her natural guardian.

● **Exception:**

- Custody of a minor child below **5 years** should ordinarily be with the **mother**.

✦ **Case: Githa Hariharan v. Reserve Bank of India (1999)**

Supreme Court interpreted that **mother can act as a guardian** even during the lifetime of the father if he is incapable or indifferent.

◆ VI. Disqualification of Natural Guardian

A person cannot be a guardian if:

- He/she **ceases to be a Hindu**, or
- Has **renounced the world** and become ascetic or sanyasi.

◆ VII. Powers of Natural Guardian (Section 8)

A natural guardian may do all acts necessary for:

- Benefit of the minor,
- Protection of minor's estate.

! Restrictions (needs court permission):

1. To **mortgage, sell, gift, exchange** or **lease** immovable property for more than 5 years or beyond the age of majority.

✦ Case: Vishweshwar v. Vandana (1992)

Guardian sold minor's land without court permission – **voidable** at minor's instance.

◆ VIII. Testamentary Guardian (Section 9)

A guardian appointed **by will**.

For a father:

- Can appoint a guardian for minor's **person and property**, but only **after mother's death**.

For a mother:

- She can appoint a guardian **if father is dead**, and she is a natural guardian.

✦ Case: Gulam Husain Kutubuddin Maner v. Abdul Rashid Abdul Rahiman (1970)

Testamentary guardian's right only comes into effect **after the death** of both parents.

◆ IX. Guardian Appointed by Court

Under **Guardians and Wards Act, 1890**, the court can appoint a guardian when:

- No natural or testamentary guardian exists or is disqualified.

The guiding principle is always the **welfare of the minor** (Section 13 of HMGA).

◆ X. De Facto Guardian

A person who has **actual custody** of the minor or his property **without legal authority**.

- Not recognized under the Act.
- **Cannot alienate** minor's property.

✦ Case: Hanuman Prasad v. Mst. Babooee Munraj Koonwaree (1856)

Laid down that any transaction by de facto guardian must be **for the benefit of the minor**.

◆ XI. Welfare of the Minor (Section 13)

The **paramount consideration** in appointing any guardian is the **welfare of the minor**.

The court will consider:

- Age, sex, and religion of the minor,
- Character and capacity of the guardian,
- Wishes of the minor (if old enough),
- Preference of parents (if deceased).

📌 Case: Rosy Jacob v. Jacob A. Chakramakkal (1973)

Held: The minor's **welfare is of supreme importance** in all matters relating to guardianship.

◆ XII. Comparison: Hindu Minority and Guardianship Act vs Guardians and Wards Act

Aspect	Hindu Act (1956)	Guardians and Wards Act (1890)
Application	Only Hindus	All citizens
Type of Guardians	Natural, Testamentary	Court-appointed
Priority	Welfare + Personal Law	Welfare is supreme
De Facto Guardian	Not recognized	Sometimes acknowledged

◆ XIII. Conclusion

The Hindu Minority and Guardianship Act, 1956 codifies the personal law relating to guardianship for Hindus, bringing clarity and uniformity. It recognizes **natural and testamentary guardians**, and emphasizes **the welfare of the child** as the most important principle. While the Act excludes **de facto guardians**, the courts have often acknowledged their role where necessary, always keeping the **best interest of the child** as the guiding standard.

■ Succession of a Male Hindu and Female Hindu under the Hindu Succession Act, 1956

(With special reference to Sections 6 to 16)

◆ I. Introduction

The **Hindu Succession Act, 1956** governs the **intestate succession** (i.e., when a person dies without a will) among Hindus, Buddhists, Jains, and Sikhs. It codified and modernized the traditional Hindu law of inheritance.

The Act deals separately with the **succession of male Hindus (Sections 8–13)** and **female Hindus (Sections 14–16)**.

◆ II. Section 6 – Coparcenary Property and Devolution (Amended by 2005 Amendment)

Section 6 deals with **devolution of interest in coparcenary property** of a male Hindu who dies **after 2005**.

◆ Key Points:

- A **daughter** is now a **coparcener by birth**, just like a son.
- She has **equal rights** in ancestral property.
- She can **demand partition** and dispose of her share by **will or otherwise**.
- The **mitakshara coparcenary** is now **gender-neutral**.

📌 Case: Vineeta Sharma v. Rakesh Sharma (2020)

SC held: Daughter is a **coparcener by birth**, irrespective of whether father was alive on 9.9.2005 or not.

◆ III. Succession of Male Hindu (Sections 8 to 13)

◆ Section 8 – General Rules of Succession for Male Hindus

On the death of a **male Hindu**, his property devolves in the following order:

Class I heirs → Class II heirs → Agnates → Cognates → Escheat (Government)

◆ Section 9 – Order of Succession among Heirs

- **Class I heirs** take **simultaneously** and **equally**.
- If no Class I heirs, then **Class II heirs** take in order of entry in the schedule.

◆ Section 10 – Distribution among Class I Heirs

Class I includes: **Mother, Widow, Son, Daughter**, and **children of predeceased son/daughter** etc.

Distribution is **per capita** among them, i.e., **equal shares**.

◆ Section 11 – Distribution among Class II Heirs

Includes father, siblings, etc., divided in **entries**.

- Only one group takes at a time.
- All heirs in that group take **equally**.

◆ Section 12 – Agnates and Cognates

If no Class I or II heirs:

- **Agnates**: Related by **blood through male lineage**.
- **Cognates**: Related by **blood but not entirely through males**.

◆ Section 13 – Rule of Preference between Heirs

- Agnates preferred over cognates.
- **Nearest in degree** excluded remoter ones.

◆ IV. Succession of Female Hindu (Sections 14 to 16)

◆ Section 14 – Property of a Female Hindu

A female Hindu is **full owner** of property possessed by her.

⚠ Two Kinds of Property:

- **Section 14(1)**: Property acquired **before or after 1956** becomes **absolute property**.
- **Section 14(2)**: If property is acquired under **limited terms**, she gets **limited estate** (not full ownership).

🔴 Case: V. Tulasamma v. Sesha Reddy (1977)

SC ruled: Property given to a widow for maintenance becomes her **absolute property** under Section 14(1).

◆ Section 15 – General Rules of Succession in case of Female Hindu

If a **female Hindu dies intestate**, her property devolves in the following order:

1. **Sons, daughters, and husband**
2. **Heirs of husband**
3. **Heirs of father**
4. **Heirs of mother**

◆ Section 16 – Order of Succession and Distribution among Heirs of Female Hindu

- Heirs in each group inherit **simultaneously and equally**.
- Only when no heirs in one group, the property goes to the next group.

🔴 Case: Omprakash v. Radhacharan (2009)

Daughter's heirs (of father's side) are preferred over distant husband's heirs.

◆ V. Special Focus: Key Differences – Male vs Female Succession

Point	Male Hindu	Female Hindu
Governing Sections	8 to 13	14 to 16

Point	Male Hindu	Female Hindu
First heirs	Class I (includes wife, children, mother)	Children and husband
Second line	Class II, agnates, cognates	Husband's heirs, then father's
Property type	Absolute (ancestral/self-acquired)	Self-acquired/Stridhan (absolute after 1956)
Stridhan	Not applicable	Full ownership under Sec. 14(1)

◆ VI. Conclusion

The Hindu Succession Act, 1956 aims to remove gender inequality and bring clarity in inheritance among Hindus. With the **2005 amendment**, daughters have been given **equal rights** in coparcenary property. The succession of a **male Hindu** is broader and more layered, whereas succession of a **female Hindu** prioritizes her immediate family and restricts distant husband's heirs unless necessary. The Act reflects a significant shift toward **gender justice and equal property rights**.

■ Hindu Joint Family and the Position of Karta

◆ I. Introduction

The **Hindu Joint Family** is a unique institution in Hindu Law. It consists of persons lineally descended from a common ancestor, including their wives and unmarried daughters. It is governed primarily by **Mitakshara** and **Dayabhaga** schools.

◆ II. Hindu Joint Family – Meaning and Nature

◆ Definition:

A Hindu Joint Family is a group of persons related by **blood, marriage, or adoption**, living and functioning together as a single unit under a common ancestor.

✦ Case: Surjit Lal v. Commissioner of Income Tax (1976)

SC held: The existence of a joint family doesn't depend on possession of joint property.

◆ Essential Features:

1. **Common Ancestor** and his male lineal descendants.
2. Includes **wives** of male members.
3. **Unmarried daughters** are members; married daughters cease to be members.
4. Arises **by operation of law**, not by agreement.
5. It can exist **without joint property**.

◆ Distinction:

- A **Joint Hindu Family** is not a corporation, but more than a mere group of individuals.
- The **Hindu Coparcenary** is a narrower concept within Joint Family.

◆ III. Hindu Coparcenary

A **Coparcenary** is a narrower body within the joint family, consisting of **four generations of male members** (now females also after 2005 amendment).

◆ Who are Coparceners (after 2005 Amendment)?

- Sons, daughters, grandsons, great-grandsons (both **male and female**).

✦ Vineeta Sharma v. Rakesh Sharma (2020):

Daughters are **coparceners by birth** with equal rights.

◆ IV. Position and Powers of Karta in Hindu Joint Family

◆ Who is the Karta?

The **senior-most male** (or now **female**) member of a Hindu Joint Family who **manages the affairs** of the family.

◆ Features of Karta:

1. **Position by Status**, not by choice.
2. **Not a trustee or agent**, but has **unique powers**.
3. Can be a **female** (post 2005) if she is the eldest coparcener and takes responsibility.

🔴 Case: Commissioner of Income Tax v. Gomedalli Lakshminarayan (1935)

Karta is the manager of the joint family, not a trustee in the legal sense.

◆ Powers of Karta:

Type	Description
Managerial	Controls income and expenditure, represents family in transactions
Representational	Can sue or be sued on behalf of the family
Alienation Powers	Can alienate joint family property in three cases : • Legal necessity • Benefit of estate • Indispensable duty Contractual Can enter into contracts binding on the family Religious Manages religious ceremonies and rituals

◆ Liabilities of Karta:

- Personally liable for **misappropriation** or **fraud**.
- Accountable to other members for **major mismanagement**.
- Liable for debts **incurred for family needs**, but not for personal debts.

◆ Can a Female be Karta?

Yes. After **2005 Amendment**, a daughter can be a **coparcener**. If she is the **eldest** and takes **responsibility**, she can be **Karta**.

🔴 Case: Sujata Sharma v. Manu Gupta (2016 – Delhi HC)

Held: Eldest daughter can be **Karta** of HUF.

◆ V. Distinction: Hindu Joint Family vs Coparcenary

Hindu Joint Family	Coparcenary
Broad group	Narrower group
Includes females, married/unmarried	Only lineal descendants (now daughters also)
Exists by law	Arises by birth
Can include unlimited generations	Only 4 generations

◆ VI. Conclusion

The **Hindu Joint Family** is a continuing institution under Hindu Law, with the **Karta** as its key managerial figure. The role of Karta is central in managing and representing the family. With **legal reforms and judicial recognition**, even women can now assume the position of **Karta**, reflecting the shift toward **gender equality** in Hindu personal law.

■ Doctrine of Pious Obligation and the Effect of Section 6(4) of the Hindu Succession Act, 1956

◆ I. Introduction

The **Doctrine of Pious Obligation** is a traditional concept in Hindu law under the **Mitakshara school**, where a **son is morally and legally bound to discharge his father's debts**, provided they are not immoral or illegal. However, with the enactment of the **Hindu Succession (Amendment) Act, 2005**, the relevance of this doctrine has been significantly reduced, especially through **Section 6(4)**.

◆ II. Doctrine of Pious Obligation – Meaning and Scope

◆ Meaning:

Under traditional Hindu law, the son (and sometimes grandson/great-grandson) has a **religious duty** to pay off his father's debts to free his soul from the consequences of indebtedness.

✦ Case: **Sidheshwar Mukherjee v. Bhubneshwar Prasad Narain Singh (1953)**

SC held that the liability is based on **religious and moral** obligation, not on contract or tort.

◆ Essentials of the Doctrine:

1. **Only ancestral debts** are covered (not personal debts).
2. Applies only when the **father is alive and the debt is not immoral**.
3. Son's liability is **not personal**, but extends to **coparcenary property**.
4. Applicable under **Mitakshara Law**, not Dayabhaga.

◆ III. Exceptions to the Doctrine

The son is **not liable** to pay:

- Debts which are **immoral**, illegal, or tainted with fraud.
- Debts that are **not for legal necessity** or benefit of the estate.

✦ Case: **Muttayan v. Ramaswami (1887)**

A son is not bound to pay **immoral debts**, such as those incurred for gambling or prostitution.

◆ IV. Section 6 of Hindu Succession Act, 1956 (As Amended in 2005)

Section 6 gives **equal coparcenary rights to daughters**, and **clause (4)** specifically abolishes the doctrine of pious obligation.

◆ Section 6(4) – Text and Meaning:

"After the commencement of the Hindu Succession (Amendment) Act, 2005, no court shall recognise any right in a son, grandson or great-grandson to claim that he is not liable to discharge any debt contracted by the father solely on the ground of pious obligation."

✅ Effect of Section 6(4):

- **Abolishes the doctrine of pious obligation** for all debts contracted **after 9th September 2005**.
- Sons, grandsons, and great-grandsons are **no longer liable** for their father's debts.
- A major **progressive reform** in Hindu law.

✦ Judgment: **Rangasamy v. Chinnusamy (2016, Madras HC)**

The court upheld that the doctrine of pious obligation **no longer applies** post-2005 amendment.

◆ V. Legal Consequences of Section 6(4)

Before 2005

After 2005 Amendment

Son liable under pious obligation

Son not liable

Liability attached to coparcenary property

No such liability now

Applied to Mitakshara families

Now abolished across all Hindu families

Immoral debts excluded, but burden existed

Doctrine removed altogether

◆ VI. Conclusion

The **Doctrine of Pious Obligation**, though rooted in Hindu religious beliefs, is now considered **outdated and inequitable**. With **Section 6(4) of the 2005 amendment**, the law took a **progressive step** towards protecting individual property rights and ensuring **gender-neutral inheritance rules**. The son is no longer burdened by ancestral debts, symbolizing a significant shift in Hindu personal law.